

Motion to Reconsider or Vacate and for Interim Stay

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 40 — Filed March 26, 2026

Cinder Lake moves the Court to reconsider or vacate the categorical-waiver and seven-day-production provisions of its March 25 order and requests an interim stay. The order compels disclosure of complete attorney-client communications and opinion work product by April 1 based on a letter that quoted or summarized none.

Cinder Lake does not seek to block ordinary related discovery. It asks for document-specific review and preservation of confidentiality while this Court and, if necessary, the court of appeals consider the issue.

Reconsideration Standard and Narrow Request

Reconsideration is warranted to correct clear legal error and prevent manifest harm from irreversible disclosure. Cinder Lake identifies the premise that an announced corporate conclusion and remediation necessarily disclose counsel's advice.

The requested correction is limited. The Court may leave in place its denial of a blanket related-discovery bar, preserve public counterparts, and permit Calder to challenge particular logged entries. It should vacate categorical waiver and the command to produce all investigation files.

No Privileged Communication Identified

The August 21 letter stated the fact of counsel's review, Cinder Lake's conclusion, and corporate measures. It did not attribute the conclusion to a communication from Rowan Vale, state what Vale recommended, reveal a witness communication, or expose legal analysis.

Rule 502(a)'s same-subject and fairness elements follow a disclosure that waives protection. The order instead inferred advice and then used the inference to open the files that might show whether the inference is true.

Text and Context of the Letter

The public letter expressly says only that outside counsel reviewed Calder's reports and that Cinder Lake adopted identified remediation. Its conclusion is framed as the organization's determination. It promises cooperation through lawful requests and encloses no memorandum or interview record.

Cinder Lake has consistently disclaimed an advice-of-counsel defense. The nonprivileged chronology separates corporate acts from legal communications. Nothing in later litigation changed the words disclosed on August 21.

Rule 502(a) and Fairness

Subject-matter waiver is reserved for circumstances in which an intentional disclosure of protected information would otherwise permit a selective and misleading presentation. Cinder Lake has presented no protected advice and will not use it to prove a defense.

Fairness can be protected by limiting evidence, requiring ordinary-source production, and revisiting waiver if Cinder Lake later relies on advice. Immediate categorical disclosure is not necessary to understand the public letter's complete text.

Privilege, Work Product, and Document Review

Upjohn protects qualifying employee communications made so organizational counsel can give legal advice while leaving facts available. The complete memorandum and drafts contain counsel's legal analysis and mental impressions. Interview memoranda combine communications, questions, selection, and impressions.

The March 25 order does not determine whether factual portions can be obtained elsewhere or severed. It opens all twenty logged items and attachments based only on their general subject, bypassing Rule 26's item-specific distinctions.

Fluor as Narrow Persuasive Analogy

In re Fluor Intercontinental, Inc. is unpublished and nonprecedential. Cinder Lake cites it only for its close factual analogy: an order requiring production within seven days after a company disclosed conclusions and general subject matter without revealing privileged communications.

The decision does not control this Court and Cinder Lake seeks no broader rule from it. Its reasoning nevertheless shows why irreversible production based on an inferred communication warrants reconsideration or a stay long enough for review.

Interim Stay Factors

Cinder Lake has a substantial argument that the order mistakes corporate conclusions for protected communications. Production will destroy confidentiality before later review; a subsequent appeal cannot make Calder forget counsel's analysis. A short stay preserves the status quo.

Calder retains ordinary discovery, may depose fact witnesses, and can use public records. The public interest favors correct privilege adjudication while permitting legitimate fact discovery. No patient or public-safety need requires April 1 disclosure.

Requested Relief and Signature

Cinder Lake asks the Court to vacate categorical waiver, withdraw the April 1 command, conduct document-specific review, or at minimum stay production until reconsideration and any prompt appellate request are resolved. It does not request a blanket prohibition on related discovery.

Submitted March 26, 2026 by Mara Voss, fictional counsel for Cinder Lake Health Network, Inc. Service was made on Nina Ashe through the synthetic civil-filing channel.